

**ARTISAN TILE AT WHITFIELD DESIGN LLC
D/B/A ARTISAN TILE
1200 Boston Post Road
Guilford, CT 06437
CT Registration: HIC #: 0646519**

CUSTOM CABINETRY AGREEMENT

THIS AGREEMENT is made as of this ____ day of _____, 2025, by and between **Artisan Tile At Whitfield Design LLC**, a limited liability company organized under the laws of Connecticut having a principal business address of 1200 Boston Post Road, Guilford, CT, 06437, doing business as Artisan Tile (hereinafter referred to as “Seller”) and _____, an individual residing at _____ (hereinafter referred to as the “Purchaser”).

In consideration of the mutual promises and conditions contained herein, the Parties agree as follows:

1. Scope of Work.

1.1 Work Included. Seller shall design, fabricate, and deliver custom cabinets and/or furniture (collectively, the “Cabinets”) as described in **Exhibit A**, which sets forth the specifications and scope of work and is incorporated herein by reference (the “Work”). Specifically, the Work includes:

- **Design and Layout:** Consultation, drawings, plans, and layout development for the Cabinets.
- **Fabrication:** Fabrication and finishing of the Cabinets according to approved plans, selections, and specifications.
- **Delivery:** Delivery of the completed Cabinets to the Property.

1.2 Work Not Included. Installation of the Cabinets is **expressly excluded** from this Agreement and will only be provided under a separate written installation contract, if elected by the Owner.

1.3 Customer Acknowledgment. Customer acknowledges and understands that any installation work, if desired, must be performed under a separate written contract.

1.4 Limitation of Liability Regarding Installation. Contractor is not responsible for installation errors, site conditions, or damages caused by Customer or any third-party installer.

2. Price and Payment Terms.

2.1 Contract Price. The total Contract Price for the Work is \$ _____, plus Connecticut sales tax of \$ _____, for a total amount of \$ _____.

2.2 Deposit. A 60% deposit of the Contract Price in the amount of \$ _____ is due at the time of signing this Agreement and is required before production will begin.

2.3 Balance Due. The remaining 40% balance in the amount of \$ _____ is due in full prior to delivery and is necessary to schedule delivery. Cabinets will not be delivered or released until full payment is received.

2.4 Payment Method. Payments may be made by cash, check, or any method otherwise accepted by Contractor. Returned payments may incur a service fee as permitted by Connecticut law.

3 Delivery; Inspection; Acceptance.

3.1 Delivery Location. Delivery of the Cabinets shall be made to the following property address ("Property"), which Purchaser shall supply in this Agreement:

Property Address: _____

3.2 Delivery of Products. Seller shall deliver the completed custom cabinets ("Cabinets") to the Property identified in this Agreement. Delivery shall occur during Seller's normal delivery hours or at a mutually agreed-upon time.

3.3 Delivery Contingent on Final Payment. Delivery shall not be scheduled, and no delivery date shall be placed on Seller's calendar, unless and until Seller has received final payment in full, cleared, and confirmed. Final payment is a condition precedent to delivery.

3.4 Delivery Window and Conditions. After final payment is received, Seller will provide Purchaser with an estimated delivery window. Delivery dates are approximate and may be adjusted due to production schedules, material availability, transportation issues, or other factors beyond Seller's reasonable control.

3.5 Access for Delivery. Purchaser shall ensure that Seller has safe, sufficient, and unobstructed access for delivery. Seller shall not be responsible for delays or added costs resulting from unsafe or inadequate access, site restrictions, or Purchaser's failure to prepare the site.

3.6 Risk of Loss. Risk of loss or damage to the Cabinets transfers to Purchaser upon delivery to the Property or placement into Purchaser's possession, whichever occurs first.

3.7 Inspection and Acceptance. Purchaser shall inspect the delivered Cabinets at the time of delivery. Any rejection for nonconformity must be stated in a written notice specifying the claimed nonconformity and delivered to Seller within five (5) business days after delivery. If no such notice is provided within that period, the Cabinets shall be deemed accepted.

3.8 Refusal or Failure to Accept Delivery. If Purchaser refuses or fails to accept delivery when the Cabinets are ready, Seller may, at its option:

- a) place the Cabinets into storage at Purchaser's sole risk and expense;
- b) invoice Purchaser as though delivery had occurred; and
- c) recover from Purchaser all reasonable storage, handling, redelivery, and insurance costs.

4. Rescission Period/Right to Cancel.

4.1 Right to Cancel. Purchaser may cancel this Agreement at any time prior to midnight of the third (3rd) business day after the date this Agreement is fully signed.

4.2 Notice of Cancellation. Notice of cancellation must be sent to Seller in writing. A separate Notice of Cancellation form is attached as Exhibit B and is incorporated herein by reference.

5. Custom, Non-Cancellable Goods; Seller's Reliance; Remedies for Cancellation Attempt

5.1 Custom and Specially Manufactured Goods; Immediate Performance. Purchaser acknowledges and agrees that all products described in this Agreement are specially designed and custom built for Purchaser, and that Seller takes immediate steps upon execution of this Agreement to design, order, and construct the items set forth herein.

5.2 No Cancellation by Purchaser Beyond Rescission Period. In light of the custom nature of the products and Seller's immediate performance, this Agreement is not subject to cancellation by Purchaser for any reason after the rescission period described in Section 4 has expired.

5.3 Seller's Remedies for Purchaser's Cancellation Attempt or Breach. If Purchaser attempts to cancel this Agreement after the rescission period or otherwise breaches the Agreement, Seller may, without limiting any other rights or remedies available at law or in equity:

- a) proceed with performance and demand full payment in accordance with the Schedule of Payments; and/or
- b) sell any items in Seller's possession, acting as Purchaser's agent, with Purchaser remaining liable for any net deficiency on resale.

5.4 Non-Refundability of Deposit. Purchaser's deposit is required to start production. Given the custom and specially manufactured nature of the items and Seller's immediate steps upon execution, the deposit shall be non-refundable after the rescission period expires.

5.5 Risk Allocation for Materials and Availability. Purchaser acknowledges that Seller's performance is subject to the availability of materials at the time of delivery, and delays caused by factors beyond Seller's control, including strikes, fires, acts of God, or other unforeseen events, shall not constitute grounds for cancellation by Purchaser.

6. Remedies for Nonpayment

6.1 Late Charges. Any delinquent amount shall accrue interest at the lesser of 1% per month (12% per annum) or the maximum rate permitted by applicable law, calculated from the due date until paid in full.

6.2 Suspension of Performance. Seller may suspend performance, production, shipment, or delivery of products until all past-due amounts and applicable charges are paid in full.

6.3 Security Interest; Lien; Repossession. To secure payment, Purchaser grants Seller a purchase money security interest in all products until Seller receives full payment. Purchaser authorizes Seller to file any necessary financing statements. Upon default, Seller may reclaim or repossess products not yet paid for, and Purchaser shall provide access to facilitate such recovery. These remedies are in addition to Seller's resale rights and Purchaser's liability for any deficiency on resale.

6.4 Collection Costs. Purchaser shall be responsible for Seller's reasonable collection costs, including attorneys' fees, court costs, and related expenses incurred as a result of Purchaser's default.

7. Change Orders. No changes, additions, deletions, or alterations to this Agreement, including but not limited to any changes to materials, specifications, dimensions, design, or finishes or other modifications to the Scope of Work, shall be effective unless set forth in a written Change Order signed by both Purchaser and Seller. No work shall proceed based on verbal instructions or understandings. Change Orders may increase price and extend production time. All approved Change Orders shall be incorporated into and become a part of this Agreement, and any additional cost or credit associated with the Change Order shall be added to or deducted from the Contract Price accordingly.

8. Force Majeure; Extensions of Time. Seller shall not be responsible or liable for any delay, interruption, or failure to perform the Work caused by events beyond Seller's reasonable control ("Force Majeure Events"). Force Majeure Events include, but are not limited to: severe weather or natural disasters; epidemics or pandemics; labor strikes, lockouts, or workforce shortages; fire, casualty, or other calamity, supply chain disruptions or material unavailability; governmental orders, inspections, regulatory changes, or shutdowns; utility interruptions; acts of vandalism, theft, or damage by third parties; additions to or modifications of the Scope of Work; Owner-caused delays, including failure to make progress payments; and any other event or condition that renders performance impracticable or impossible. If a Force Majeure Event occurs, Seller's time for performance, including the scheduled completion date, shall be extended for a period equal to the duration of the delay, and Seller shall provide written notice to Purchaser identifying the cause and the anticipated extension. Any such delay shall not constitute a breach of this Agreement.

9. Ownership of Materials. Seller retains full ownership of all materials and Cabinets until the Contract Price is paid in full.

10. Warranty.

10.1 Standard Warranty. Contractor warrants that the Cabinets will be free from fabrication defects for one (1) year.

10.2 Not Covered. Warranty does **not** cover:

- Damage caused by installation, misuse, or improper handling;
- Variations in natural wood grain, texture, or color;
- Environmental damage (humidity, water exposure, etc.);
- Normal wear and tear;
- Issues arising from third-party installation.

10.3 Other Manufacturer Warranties. Where other warranties of purchased products apply, such manufacturer warranties govern those products, and Seller's standard warranty applies to Seller's services and equipment otherwise furnished.

10.4 Disclaimer of Implied Warranties. Except as expressly stated in Section 10.1 and any applicable manufacturer warranties, and to the maximum extent permitted by law, Seller disclaims all implied warranties, including merchantability and fitness for a particular purpose.

11. Limitation of Liability.

11.1 Total Liability Cap. To the fullest extent permitted by Connecticut law, Seller's total liability under this Agreement, whether arising in contract, tort (including negligence), strict liability, or otherwise, shall not exceed the total amount actually paid by Purchaser for the portion of the Cabinets giving rise to the claim.

11.2 Exclusion of Certain Damages. Except to the extent prohibited by law, Seller shall not be liable for any indirect, incidental, special, exemplary, or consequential damages, including without limitation lost profits, loss of use, delay damages, diminution in value, or costs arising from installer scheduling, site readiness, or third-party actions, even if Seller has been advised of the possibility of such damages.

11.3 Exceptions. Nothing in this Section shall limit or exclude Seller's liability for:

- a) bodily injury or death caused by Seller's gross negligence or willful misconduct; or
- b) any other liability that cannot be limited or excluded under Connecticut law.

11.4 Exclusive Remedies. The remedies provided in this Agreement, including repair, replacement, or refund of amounts paid, are Purchaser's sole and exclusive remedies for any claim arising from or relating to the Cabinets or services provided under this Agreement.

11.5 Conspicuousness and Acknowledgment. Purchaser acknowledges that this Limitation of Liability is clearly stated, conspicuous, and part of the basis of the bargain, and that Purchaser has read and understands this provision prior to signing.

12. Intellectual Property.

12.1 Ownership. All designs, layouts, drawings, specifications, and other materials furnished by Seller are original works and proprietary to Seller and must not be released or copied unless the applicable fee has been paid or a job order placed.

12.2 License. Upon full payment, Seller grants Purchaser a non-exclusive, non-transferable license to use the delivered designs solely for the project at the Property. No other rights are granted or implied.

12.3 Misuse and Remedies. Any unauthorized use, reproduction, or disclosure constitutes a material breach entitling Seller to injunctive relief, damages, and recovery of reasonable attorneys' fees.

12.4 Attribution/Markings. Purchaser shall not remove or obscure proprietary notices on Seller's materials.

13. Dispute Resolution- Arbitration.

13.1 Attribution Requirement. Any dispute, claim, or controversy arising out of or relating to this Agreement, the products or services provided under it, or the breach, termination, or validity thereof (collectively, a "Dispute"), shall be resolved exclusively by binding arbitration administered by the American Arbitration Association ("AAA") in accordance with its applicable rules then in effect, except as modified by this Section.

13.2 Venue; Governing Law. The arbitration shall take place exclusively in New Haven County, Connecticut. This Agreement and any arbitration conducted under it shall be governed by the laws of the State of Connecticut, without regard to conflict-of-law principles.

13.3 Arbitrator and Procedures. The arbitration shall be conducted before a single neutral arbitrator selected in accordance with AAA rules. The arbitrator shall have authority to award any remedy or relief that a court of competent jurisdiction could award, including injunctive relief and attorneys' fees where authorized by this Agreement or applicable law.

13.4 Enforcement of Award. The arbitrator's award shall be final and binding on the parties. Judgment on the award may be entered in any court of competent jurisdiction, and the parties consent to the jurisdiction of such courts for this purpose.

13.5 Provisional Judicial Relief. Either party may seek temporary or preliminary injunctive relief in a court of competent jurisdiction located in New Haven County, Connecticut, if necessary to protect its rights pending arbitration.

14. WAIVER OF JURY TRIAL AND COURT PROCEEDINGS. BY SIGNING THIS AGREEMENT, THE PARTIES KNOWINGLY AND VOLUNTARILY AGREE THAT ALL DISPUTES SHALL BE RESOLVED EXCLUSIVELY THROUGH BINDING ARBITRATION AND NOT IN COURT. THE PARTIES FURTHER ACKNOWLEDGE AND AGREE THAT THEY ARE WAIVING ANY RIGHT TO A TRIAL BY JURY AND ANY RIGHT TO PARTICIPATE IN A COURT ACTION (EXCEPT TO ENFORCE AN ARBITRATION AWARD OR SEEK PERMITTED PROVISIONAL RELIEF).

15. Notices. Any notice, demand, or other communication required or permitted under this Agreement shall be in writing and shall be deemed properly given if:

- a) Delivered personally to the recipient at the address set forth in the opening section of this Agreement; or
- b) Sent by first-class U.S. Mail, postage prepaid, and addressed to the recipient at the address set forth in the opening section of this Agreement, in which case it shall be deemed given three (3) days after mailing.

Notices may also be delivered by other means if agreed in writing by both parties.

16. Prevailing Party Attorney Fees. In any dispute, contest, action, proceeding, arbitration or litigation between the parties hereto arising out of or relating to this Agreement and/or the enforcement or the interpretation of this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party all costs, expenses, and reasonable attorneys' fees incurred, including those incurred in any appeal, post-judgment proceedings, or in enforcing any judgment or award.

17. Seller Disclosure of Related Business Entities. Seller hereby discloses that within the past five (5) years, Seller has not held an ownership, membership, partnership, officer, shareholder, or other financial interest in any other corporations, limited liability companies, partnerships, or other business entities engaged in home improvement or related construction services.

18. Relationship of the Parties. Seller is an independent contractor. Neither Party is an agent, representative, partner or employee of the other Party. The Parties understand this Contract is not an exclusive arrangement. The Parties agree that they are free to enter into other similar agreements with other parties.

19. No Partnership. Nothing in this Agreement shall be construed to create a partnership, joint venture, or any similar relationship between the parties. Neither party shall have any authority to bind, act for, or assume any obligation on behalf of the other.

20. Governing Law. This Agreement shall be governed by the laws of the State of Connecticut.

21. Severability. If any provision of this Contract shall be held invalid by any court of competent jurisdiction, such holding shall not invalidate any other provision hereof.

22. Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions, understandings, or agreements. Any modifications to this Agreement must be in writing and signed by both parties.

23. Execution in Counterparts; Electronic Signatures. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Signatures transmitted by electronic means, including by PDF, email, DocuSign, or other electronic signature platform, shall be deemed original signatures for all purposes and shall have the same force and effect as original handwritten signatures.

SELLER:

ARTISAN TILE AT WHITFIELD
DESIGN LLC D/B/A ARTISAN TILE

By: _____
Date _____

PURCHASER:

(Name Print) Date _____

EXHIBIT A:

WORK TO BE PERFORMED SPECIFICATIONS

EXHIBIT B: NOTICE OF CANCELLATION

NOTICE OF CANCELLATION

YOU MAY CANCEL THIS TRANSACTION WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE (3) BUSINESS DAYS FROM THE DATE THIS AGREEMENT IS FULLY SIGNED.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN TEN (10) BUSINESS DAYS FOLLOWING THE RECEIPT BY CONTRACTOR OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL ALSO BE CANCELLED.

TO CANCEL THIS TRANSACTION, MAIL OR DELVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN CANCELLATION NOTICE, NOT LATER THAN MIDNIGHT OF THE THIRD BUSINESS DAY FOLLOWING THE FULL EXECUTION OF THE AGREEMENT, TO:

Artisan Tile At Whitfield Design LLC
1200 Boston Post Road
Guilford, CT 06437

I HEREBY CANCEL THIS TRANSACTION:

OWNER:

By: _____

(Signature)

Printed Name: _____

Title: _____

Date: _____

Cancellation is effective if sent prior to midnight of the third business day after the date the Agreement is fully signed.